

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

1. Contracting Activity: Department of Veterans Affairs (VA)
Office of Procurement, Acquisition, and Logistics
Technology Acquisition Center
23 Christopher Way
Eatontown, NJ 07724
2. Description of Action: This proposed sole source action is for a firm-fixed-price contract for the procurement of brand name InvisAlert Software Solution to be implemented and hosted in the VA Enterprise Cloud (VAEC) with InvisAlert Solutions Inc, 21 W Washington ST Sect E, West Chester, Pennsylvania 19380-2666, United States.
3. Description of Supplies or Services: VA Veterans Health Administration, and Associate Director for Patient Care Services Mental Health & Acute Care Nursing Services has a requirement for brand name InvisAlert Software Solution. VA requires a solution to streamline patient monitoring and care management in order to capture and maintain critical patient information during provider rounds, ensuring accurate, real-time data to support high-quality care. All data must be fully secured in the VAEC Cloud. VA requires Patient Observation Records from the system to be sent into the electronic health record using a COLD feed that can be configured to receive HL7(Health Level Seven) messages and monitor file systems. VA requires a solution that is a programmable proximity-based rounding system to allow nursing staff to record the rounding information and upload to computerized patient record systems (CPRS). The system aids in the rounding of patients in the mental health ward where the patient wears a wrist band that connects to the iPad and alerts the nurse when rounding has not been completed. This system ensures that the nurses in charge of completing the patient checks are physically near the patient when they perform the check. It is used for patient location monitoring and behavior observation. The proximity-based rounding system must be a Bluetooth-enabled system that provides real-time patient data, ensuring closer adherence to monitoring protocols. The system integrates built-in parameters to ensure staff are within 3 feet of the patient to access the patient record and document the observation. The system will be used on the following: MH3B (24 beds), ED (2 beds), 3D (2 beds), 5A (2 beds), 5B (10 beds), 5D (2 beds), 5C (2 beds), and ICU (2 beds). The Environmental Rounds module and 1:1 observation will be used on all units. The performance period shall be a 12-month base period with four (4) 12-month option periods to be exercised at the Government's discretion. The total estimated value of the proposed action at [REDACTED], inclusive of the option periods.
4. Statutory Authority: The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(1) as implemented by the Federal Acquisition Regulation (FAR) 6.103-1 "Only one responsible source and no other supplies or services will satisfy agency requirements."

5. Rationale Supporting Use of Authority Cited Above: Based on market research, as described in Section 8 of this justification, it was determined that no competition is available for this procurement. VA requires unique functionality that only InvisAlert Software can provide, such as, an iPad table for Q15 minute rounding and 1:1 observation that syncs with a tamper-proof wristband, customized time intervals for individual patient rounding with a countdown until the round is completed and visual cues, including a photo of the patient, and alerts when a round is missed or the observation is no longer in the designated proximity and reports that allow the analysis for Q15 minute rounding and 1:1 observation.

InvisAlert Software uses proprietary software, along with a patented, highly tamper-resistant wristband with a Bluetooth beacon and tablet to validate compliance and document patient observations. Patient checks can only take place when there is staff to patient proximity, thus ensuring compliance and mitigate the risks and costs associated with missed and falsified observations. The tablet has patient panel photographs to quickly identify patients that is customizable for patient precaution risk and flags discreetly to inform staff. Patients will wear a tamper-resistant disposable wristband that secures a sealed, reusable Bluetooth beacon to the patient's wrist. The Bluetooth beacon contains no patient health information. InvisAlert has designed the only tamper-resistant band specifically for behavioral health that can only be removed at discharge. VA requires that the InvisAlert software run as an application on tablets as well as a desktop web service to be located on a secure server. The system has an optional environment for care modules. VA requires real-time proactive alerting in its software. The software responds to safety concerns immediately for missed observations, 1:1 falling asleep and staff who are out of proximity. Supervisory staff are proactively notified of any potential issues so they can immediately assist and correct the problem in real time. VA also requires that the software fully supports the complexities and nuances of behavioral health workflows. VA requires reporting and analytics capabilities that will assist the needs of the clinical, business, risk, and quality teams. InvisAlert software allows for reports that can be easily queried or pushed as a standard daily report to an email. Additionally, VA requires that the software integrates seamlessly with existing VA systems through the Admission, Discharge, and Transfer feed. The platform offers multiple options for retrieving results from CPRS, including Portable Document Format via Secure File Transfer Protocol, HL7 messages, Mobile Device Management files, and automated flowsheet updates every 15 minutes.

Failure to procure InvisAlert would result in VA accepting a solution that does not meet safety and operational needs, increasing risk to personnel, patients, and disrupting mission-critical healthcare services.

InvisAlert Software is a sole source product, manufactured, sold, and distributed exclusively by InvisAlert Solutions. The software solution is protected by intellectual property rights, and no other vendor is authorized to provide the software, source code or direct technical support. InvisAlert is not available through resellers or third-party providers.

6. Efforts to Obtain Competition: Market research was conducted, details of which are in the market research section of this document. This effort did not yield any additional resources that could meet the Government's requirements. There is no competition anticipated for this acquisition. Additionally, the proposed action will be synopsized on the Contracting Opportunities Page in accordance with FAR 5.201. Any proposals that are received shall be evaluated.
7. Actions to Increase Competition: VA will continue to conduct market research to ascertain if there are changes in the marketplace that would enable competition in future actions to be completed.
8. Market Research: On February 24, 2026, the Contracting Specialist (CS) posted a Request for Information (RFI) on SAM.gov to identify comparable software solutions and determine whether other brands could meet the VA's software requirements. M.G.M. Solutions was the only vendor that responded to the RFI. On March 3, 2026, the CS forwarded M.G.M. Solutions' response to the Government Subject Matter Experts (SMEs) for evaluation. The Government SMEs conducted a comprehensive review of the vendor's capabilities, technical specifications, and solution composition. Following the review, the Government SMEs determined that the proposed solution did not address the specific safety requirements of a mental health environment. Specifically, the rounding solution is not proximity-based, the patient wearables are not tamper-proof, and the product lacks environment-of-care modules. Based on these findings, M.G.M. Solutions cannot meet the requirements necessary to fulfill this contract.

InvisAlert is the only identified solution that provides all of VA's functional requirements. The Government SME's reviewed other products such as Securitas Healthcare, CenTrak, and AiRISTA Flow, which are generalized products available as generalized healthcare solutions for a variety of workflows. These products lack the specificity needed for the Inpatient Mental Health setting in that they do not specifically address the essential functions of Q15 minute rounding and 1:1 observation.

On October 28, 2025, the Contract Specialist emailed InvisAlert Solutions to request an explanation that they are the only ones available for this work. On the same day, InvisAlert Solutions responded with a sole source letter, which was placed in the contract file.

9. Other Facts: None

10. Technical/Requirements Certification: I certify that the supporting data under my cognizance, which are included in this justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED] [REDACTED]
[REDACTED] [REDACTED]
[REDACTED] [REDACTED]

11. Fair and Reasonable Cost Determination: I hereby determine that the anticipated price to the Government for this contract action will be fair and reasonable based on price analysis to include an analysis of the proposed price in relation to the Independent Government Cost Estimate and past historical prices paid for the same and/or similar requirements and subsequent negotiations held as necessary.

[REDACTED] [REDACTED]
[REDACTED] [REDACTED]
[REDACTED] [REDACTED]

Contracting Officer Certification/Approval: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED] [REDACTED]
[REDACTED] [REDACTED]
[REDACTED] [REDACTED]